

Court No. - 39

Case :- WRIT - C No. - 5802 of 2017

Petitioner :- M/S Nourishing Food (Pvt.) Limited

Respondent :- State Of U.P. & 2 Others

Counsel for Petitioner :- Rajesh Kumar Sharma, Bidhan Chandra Rai

Counsel for Respondent :- C.S.C., Chandan Agarwal

Hon'ble Dilip Gupta, J.

Hon'ble Siddhartha Varma, J.

The petitioner set up a multiplex in Ghaziabad. The petitioner is aggrieved by a communication dated 7 September 2016 sent by the Executive Engineer of the Electricity Urban Distribution Division-V Paschimanchal Vidhyut Vitran Nigam Ltd. Ghaziabad that the billing for the multiplex complex would be under HV-1 category instead of HV-2 category and, accordingly, a bill has been raised.

Learned counsel for the petitioner has submitted that by the notification dated 22 May 1999 the State Government has given the status of an industry to multiplex halls and, therefore, the petitioner should be treated as an industry and not as a commercial organisation.

This is an issue which can be raised by the petitioner under Clause 6.5 of the Electricity Supply Code, 2005.

Sri Chandan Agarwal, learned counsel appearing for the respondents states that if the petitioner invokes the said Clause, a decision shall be taken expeditiously.

This petition is, accordingly, disposed of with a direction that in the event the petitioner invokes the said Clause, a decision shall be taken by the respondent authority in accordance with law expeditiously and preferably within a period of three months

from the date a certified copy of this order is filed by the petitioner.

It is made clear that the Court has not adjudicated on the merits of the case, which shall be decided by the respondent authority.

Any deposit made by the petitioner shall be subject to the decision that may be taken by the respondent-authority.

Order Date :- 8.2.2017
NSC

(Dilip Gupta, J.)

(Siddhartha Varma, J.)